

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

DANIEL PATRICK HAWKINS, et al.,

Plaintiffs,

v.

GENERAL MOTORS LLC, et al.,

Defendants.

Case No.: CIVSB2434789

**[TENTATIVE] ORDER
GRANTING MOTION FOR
SUMMARY JUDGMENT FILED
BY DEFENDANT AND DENYING
LEAVE TO AMEND THE
OPERATIVE COMPLAINT**

I. INTRODUCTION

A. Complaints and Answer

This was originally an action under the Song-Beverly Consumer Warranty Act (“Song-Beverly Act”). Plaintiffs Daniel Patrick Hawkins and Alisa M. Hawkins (“Plaintiffs”) filed their initial Complaint on November 19, 2024, against Defendants General Motors LLC (“Defendant” and/or “GM”) and Does 1 through 10, alleging two causes of action: (1) Violation of the Song-Beverly Act Breach of Express Warranty, and (2) Violation of the Song-Beverly Act Breach of Implied Warranty.

Then, on December 24, 2024, Plaintiffs filed their First Amended Complaint (“FAC”) against the same defendants, alleging a single cause of action for: (1) Violation of the Magnuson-Moss Warranty Act (the “Magnuson-Moss Act”). Plaintiffs allege that Defendant GM

manufactured and/or distributed the 2021 GMC Sierra that Plaintiffs acquired on or about January 4, 2024. As part of the purchase transaction, GM issued an express warranty. In addition, GM impliedly warranted that the vehicle would be of the same quality as similar vehicles sold in the trade and that it would be fit for the ordinary purposes for which similar vehicles are used. Despite a reasonable amount of time and number of attempts to conform the vehicle to the applicable warranties, Defendant failed to do so. (FAC, at ¶¶ 4-7, 9-10.) Plaintiffs allege the Magnuson Moss Warranty Act (15 U.S.C. § 2301, subd. (d)(1)) provides for a cause of action for any consumer who is damaged by the failure of a warrantor to comply with a written warranty. (*Id.*, at ¶ 16.)

On January 16, 2025, Defendant filed its Answer to Plaintiffs' Complaint.

B. Instant Motion

Now at issue before the Court is Defendant GM's Motion for Summary Judgment. GM contends that Plaintiffs cannot maintain the single count of Magnuson-Moss Act without a viable state law cause of action, which does not exist in the FAC.

In support of the motion, GM provides the Declaration of Bryan Jensen ("Mr. Jensen"), Declaration of Kyle Roybal, Esq. ("Mr. Roybal"), and a Separate Statement with 8 claimed undisputed material facts. Mr. Jensen is GM's Litigation Support Manager for the Western Region Customer Care and Aftersales. He authenticates the following exhibits: Exhibit B (GM's View Vehicle Delivery Information report), Exhibit C (2021 GMC Limited Warranty and Owner Assistance Information booklet) and Exhibit D (GM's View Vehicle Summary). Mr. Roybal is counsel of record for GM. He authenticates Exhibit A (the Retail Installment Sale Contract dated January 4, 2024).

Plaintiffs oppose the motion. They first argue that there are other triable issues of fact which do not allow summary judgment. In the alternative, they request leave to amend. In

support of the opposition, Plaintiffs provide the Declaration of Zachary B. Powell, Esq. (“Mr. Powell”), and they respond to Defendant’s Separate Statement along with 6 additional claimed undisputed material facts. Mr. Powell authenticates the following exhibits: Exhibit 1 (Repair Orders for subject vehicle) and Exhibit 2 (Retail Installment Sales Contract for the subject vehicle). Defendant does not reply to the opposition. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.¹

II. PROCEDURAL CONCERN RE: THE OPPOSITION

The opposition is untimely. Code of Civil Procedure section 437c, subdivision (b)(2), states that “[a]n opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.” Twenty days prior to the original hearing date of May 27, 2026, was Thursday, May 7, 2026. Plaintiffs did not file their Opposition until 6 days later on May 13, 2026.

The court in its discretion may reject the opposition as untimely and treat the motion as without an opposition. (Rules of Court, rule 3.1300, subd. (d) [“If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”].) On the other hand, the court may consider a late filing if there is no prejudice. (*Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202 [Filing 2 days late with no showing of prejudice by other side supported court’s discretion in “view of the strong policy of the law favoring the disposition of cases on the merits”].) If there is prejudice, the court may continue the hearing. (*Kapitanski v. Von’s Grocery Co.* (1983) 146 Cal.App.3d 29, 33 [Noted in the context of a summary judgment that “If the court here believed its receipt of Kapitanski’s untimely declaration would have prejudiced Von’s, it could have continued the hearing”].)

¹ The Court finds that the moving party has complied with its meet-and-confer obligation.

Here, in the absence of any claimed or apparent prejudice, the Court exercises discretion to consider Plaintiff's Opposition. In addition, the hearing was continued from May 27, 2026, to July 23, 2026, which means Defendant had the opportunity to reply on the merits and it appears to have chosen not to do so. Further, there is a "strong public policy favoring a trial on the merits," and there is also a strong public policy favoring resolution of a motion for summary on the merits as "its sole purpose is to determine from the affidavits where there is an issue of fact to be tried." (*Hamburg v. Wal-Mart Stores, Inc.* (2004) 116 Cal.App.4th 497, 502; *House v. Lala* (1960) 180 Cal.App.2d 412, 416.)

III. WHY THE COURT IS GRANTING SUMMARY JUDGMENT

A. Defendant's Separate Statement.

In support of its motion, GM provides 8 Undisputed Material Facts ("UMF"). Plaintiffs dispute UMFs Nos. 3 and 6-8 to the extent that GM contends the remaining warranty balance was unenforceable by them. The vehicle at issue is a model year 2021 GMC Sierra 1500, VIN: 1GT9EEL3MZ276940 ("Subject Vehicle" or "Sierra"), which Plaintiffs purchased on January 4, 2024, from Pacific Auto Center. (UMF # 1 [Undisputed].)

Plaintiffs did not buy the Sierra new; they bought it used, with 49,061 miles on the odometer. (UMF # 2 [Undisputed].) GM was not a party to the transaction between Plaintiffs and Pacific Auto Center. (UMF # 3 [Undisputed].)

Plaintiffs were not Sierra's original owners. (UMF # 4 [Undisputed].) Hall Chevrolet GMC delivered the Sierra to its original owner(s) on April 9, 2021, with 14 miles on its odometer. (UMF # 5 [Undisputed].) In connection with that delivery of the Sierra to its original owner(s), GM issued a New Vehicle Limited Warranty (the "Warranty"), providing bumper-to-bumper coverage for the earlier of 3 years or 36,000 miles, and powertrain coverage for the earlier of 5 years or 60,000 miles. (UMF # 6 [Undisputed].)

The Warranty's coverages began when Hall Chevrolet GMC delivered the Sierra to its original owner(s) on April 9, 2021. (UMF # 7 [Undisputed].) GM did not issue or provide any new or additional warranty coverage to Plaintiffs or the vehicle when Plaintiffs bought the Sierra used; Plaintiffs received only the balance of any coverage remaining under the Warranty that GM issued when the Sierra was delivered to its original owner(s). (UMF # 8 [Undisputed].)

B. Plaintiff's Separate Statement

In response, Plaintiffs provide 6 Additional Material Facts ("AMF"). During the applicable warranty period, Plaintiffs presented the Subject Vehicle to authorized GM repair facilities on multiple occasions for diagnosis and repair of defects. (AMF # 1.) Despite multiple repair attempts, the Subject Vehicle continued to exhibit nonconformities. (AMF # 2.) GM was provided with a reasonable opportunity to repair it but failed to conform the vehicle to its warranties. (AMF # 3.) Plaintiffs suffered diminution in value and loss of use as a result of GM's failure to repair. (AMF # 4.)

The repair history creates triable issues as to whether defects covered by GM's written warranty were repaired within a reasonable time and reasonable number of opportunities. (AMF # 5.) Plaintiffs' repair history and GM's warranty documents create triable issues regarding whether GM complied with its written warranty obligations and whether Plaintiffs have a viable warranty theory supporting their Magnuson-Moss Warranty Act claim. (AMF # 6.)

C. Analysis

The Court finds that Defendant meets its initial burden and Plaintiffs do not. Plaintiffs' only cause of action is for violation of the Magnuson-Moss Act. (FAC, at p. 1 & at ¶¶ 12-22.) "The Magnuson-Moss Act is designed to protect consumers against deceptive warranty practices. [Citations.] Although the Magnuson-Moss Act 'does not require any manufacturer or seller to extend a warranty with its product, any "written warranty"' offered with a consumer product is

subject to the [Magnuson-Moss Act's] regulatory requirements.' [Citation.] Furthermore, the Magnuson-Moss Act applies to all sales of consumer products costing more than a de minimis value in which a written warranty is given. [Citations.]" (*Lake v. Unilever U.S., Inc.* (N.D. Ill. 2013) 964 F.Supp.2d 893, 919-20.) It "allows a consumer to bring a suit where he claims to be damaged by the failure of a supplier, warrantor, or service contractor to comply with any obligation under [the MMWA] or under a written warranty, implied warranty, or service contract.'" (*In re Apple iPhone 3G Products Liability Litigation* (N.D. Cal. 2012) 859 F.Supp.2d 1084, 1089.)

The Magnuson-Moss Warranty Act provides that a consumer who is damaged by a supplier, warrantor, or service contractor's failure to comply with statutory-imposed obligations or those under a written warranty, implied warranty, or service contract may bring suit for damages. (15 U.S.C. § 2310, subd. (d).) Defendant GM only advances one argument as to the FAC's sole cause of action. GM argues Plaintiffs' claims fail as a matter of law because there is no viable state-law cause of action. Defendant cites to cases such as *Daugherty v. Am. Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 833 ("*Daugherty*"), *Clemens v. DaimlerChrysler Corp.* (9th Cir. 2008) 534 F.3d 1017, 1022 ("*Clemens*") and *Birdsong v. Apple, Inc.* (9th Cir. 2009) 590 F.3d 955, 958, for authority that the Magnuson-Moss Warranty Act calls for the application of state written and implied warranty law, not the creation of additional federal law. It then argues because Plaintiffs have no state law breach of warranty claim, their claims under the Magnuson-Moss Act fail and summary judgment should be granted.

Plaintiffs argue that summary judgment should be denied as triable issues of fact exist regarding whether GM breached its warranties under the standards incorporated into the Magnuson-Moss Act. Plaintiffs concede that courts have held that such a claim depends upon the

existence of a viable state-law warranty claim, such that the disposition of the state-law warranty claim determines the disposition of the Magnuson-Moss Act claim. (*See Clemens, supra*, 534 F.3d 1017, 1022.) Nonetheless, Plaintiffs argue that the following allegations sufficiently establish a breach of express written warranty under California law: the existence of GM's written warranties, presumption of the subject vehicle for warrantable repairs to authorized facilities, GM's failure to repair the subject vehicle within a reasonable time and reasonable number of attempts, and the resulting damages. Plaintiffs thus contend they have a viable Magnuson-Moss Act claim. Plaintiffs also contend that *Daugherty, supra*, 144 Cal.App.4th 824, held that a Magnuson-Moss Warranty Act claim fails where no state-law warranty claim exists, but a viable state-law written warranty foundation is adequately alleged and supported by the evidence. Plaintiffs further state that *Daugherty* does not stand for the proposition that a transferable manufacturer's written warranty is unenforceable by a subsequent owner.

Alternatively, if the Court concludes that Plaintiffs must separately plead the underlying state-law warranty theory in addition to the Magnuson-Moss Act cause of action, Plaintiffs request leave to amend to add a cause of action for breach of express written warranty and related California warranty law based on GM's written warranty and Plaintiffs' warranty repair history. Plaintiffs are correct that it is established policy that courts are to liberally permit amendments at any stage of the proceeding. (*Hirsa v. Superior Court (Frederick Henry Vickers)* (1981) 118 Cal.App.3d 486, 488-89 ["Trial courts are vested with the discretion to allow amendments to pleadings 'in furtherance of justice.' (Code Civ. Proc., § 473.) That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901. [Citations.]"].)

The Court GRANTS Defendant's motion for summary judgment as to the only cause of action in the FAC because it has met its burden of proof to show there is no factual basis for relief for the Plaintiffs and Defendant is thus entitled to judgment as a matter of law. It is an undisputed fact that Plaintiffs purchased the Sierra used, and Defendant was not a party to the transaction between Plaintiffs and Pacific Auto Center. (UMF # 1-5.) It is also undisputed that Defendant issued a New Vehicle Limited Warranty which began when the vehicle was delivered to its original owner(s) on April 9, 2021, and it did not issue or provide any new or additional warranty coverage to Plaintiffs or the vehicle when it was purchased used on January 4, 2024. (UMF # 1, 6-8.) The FAC frames the first cause of action as Defendant failed to comply with the express and implied warranties of the vehicle and as such, Plaintiffs are entitled to relief under the Magnuson-Moss Act. (See FAC, at ¶¶ 16-22.) There is no other cause of action within the FAC.

As shown by Defendant, many cases, both California and federal, have found that without a valid state law breach of warranty claim, there can be no claim under the act. (*See, e.g., Arana v. Tesla Motors, Inc.* (C.D. Cal. Feb. 7, 2023) 2023 WL 1796956, at *2–3; *See also Troup v. Toyota Motor Corp.* (9th Cir. 2013) 545 F.App'x 668, 669; *Clemens, supra*, 534 F.3d at pp. 1022, 1027; *Daugherty, supra*, 144 Cal.App.4th at p. 833.)

Arana v. Tesla Motors, Inc. (C.D. Cal. 2023) 2023 WL 1796956 (“Arana”) is persuasive, and its facts are comparable to the facts in the instant proceeding. Arana involved claims brought under the Song-Beverly Act and the Magnuson-Moss Act pertaining to a used 2020 Tesla Model 3 purchased from a third-party dealership. (*Id.*, at *1.) In ruling on a motion to dismiss, the federal court found, in pertinent part, as follows:

Defendant argues that Plaintiff's two claims fail for two distinct reasons. First, his express warranty claim under the SBA applies only to new (or “like-new”) vehicles, and therefore his claim, premised upon his used-vehicle purchase,

cannot stand. Second, Defendant avers that MMWA claims rise or fall with underlying state-law claims, and because Plaintiff's SBA claim fails, so must his MMWA claim. The Court agrees.

(*Arana, supra*, 2023 WL 1796956, at *3.)

The district court granted the motion and dismissed the entire complaint, finding that, “[b]ecause Plaintiff’s sole state-law claim fails, and because his MMWA claim is predicated solely on that claim, the MMWA claim must fail as well.” (*Arana, supra*, 2023 WL 1796956, at *6-7.) While unpublished and therefore not binding,² *Arana* provides persuasive authority supporting the conclusion that, absent a viable state law breach of warranty claim, a claim under the Magnuson-Moss Act cannot proceed. (*Ibid.*)

Similarly, the United States Court of Appeals for the Ninth Circuit in *Troup v. Toyota Motor Corp.* (9th Cir. 2013) 545 F.App’x 668, 669 (“*Troup*”), stated: “[g]iven the Troups’ failure to state a claim for breach of an express or implied warranty, the district court also properly dismissed their claim under the Magnuson-Moss Warranty Act, a federal cause of action requiring a breach of warranty under state law. *See Birdsong v. Apple, Inc.*, 590 F.3d 955, 958 n.2 (9th Cir. 2009) (‘[B]ecause we conclude that the plaintiffs have failed to state a claim for breach of an express or implied warranty, their claim[] under the[] [Magnuson-Moss Warranty Act is] also properly dismissed.’).” *Troup* did not involve the Song-Beverly Act. It concerned an alleged design defect in a Toyota Prius that did not fall within the scope of the warranty at issue; and it concerned the failure to allege that the Prius was unfit for its intended purpose. (*Id.*, at *668-69.) Nevertheless, while unpublished and not binding, *Troup* also provides persuasive

² “[T]he California Rules of Court do not prohibit citation to unpublished federal cases, which may properly be cited as persuasive, although not binding, authority.” (*Reynaud v. Technicolor Creative Servs. United States* (2020) 46 Cal.App.5th 1007, 1022, fn. 9 (“*Reynaud*”) [internal quotations omitted].)

authority supporting the conclusion that, absent a viable state law breach of warranty claim, a claim under the Magnuson-Moss Act cannot proceed.

Moreover, *Daugherty, supra*, 144 Cal.App.4th 824, involved a class action wherein it was alleged that the defendant failed to disclose an engine defect until after the warranty on the vehicle had expired. (*Id.* at p. 827.) The trial court sustained a demurrer to the plaintiffs' claims, finding that a defect discovered after the warranty expired cannot support a breach of warranty claim under either California or federal law, and the appellate court affirmed. (*Ibid.*) As to plaintiffs' cause of action under the Magnuson-Moss Act, the *Daugherty* court stated it: "authorizes a civil suit by a consumer to enforce the terms of an implied or express warranty. Magnuson-Moss 'calls for the application of state written and implied warranty law, not the creation of additional federal law,' except in specific instances in which it expressly prescribes a regulating rule. [Citation.] (*Id.* at pp. 832-33.) Accordingly, the *Daugherty* court held that the trial court did not err in finding that the failure to state a warranty claim under state law necessarily constituted a failure to state a claim under the Magnuson-Moss Act. (*Ibid.*)

Plaintiffs fail to cite any authority to support their contention that the applicable statutory or case law does not require a plaintiff to plead a state-law warranty claim to pursue relief under the Magnuson-Moss Act. In fact, Plaintiffs concede that courts have held a Magnuson-Moss Act claim depends upon the existence of a viable state-law warranty claim, such that its disposition determines the disposition of the Magnuson-Moss Warranty claim. (Opp. at p. 7:9-12.)

Therefore, given that Plaintiffs have no state law claim, the Court finds that the cause of action for violation of the Magnuson-Moss Warranty Act cannot continue.

With respect to the leave to amend, the Court DENIES Plaintiff's request. It is normally liberally granted; however, an unwarranted delay justifies a denial of leave to amend. "The law is

well settled that a long-deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court's denial of the amendment." (*Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613 [Internal citations and quotation marks omitted].) Plaintiffs voluntarily removed their state claims on December 24, 2024, when they removed the former causes of action for violation of the Song-Beverly Act Breach of Express Warranty and violation of the Song-Beverly Act Breach of Implied Warranty, and they could have added other state claims. Instead, they only brought a cause of action for violation of the Magnuson-Moss Act. "There can be no question but that an amended complaint takes the place of the original, and that when filed the original ceases to perform any further functions as a pleading." (*Pfister v. Wade* (1886) 69 Cal. 133, 138.) Also, the policy to allow leave to amend at any stage depends on whether no prejudice is shown to the adverse party. (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175 ("Melican").) In *Melican*, the Court of Appeal referenced *Huff v. Wilkins* (2006) 138 Cal.App.4th 732, 746, and stated "in *Huff*, three days before the scheduled hearing on the defendant's summary judgment motion, the plaintiff requested an order shortening time to bring a motion to amend his complaint to add a new claim and to continue the summary judgment hearing. *Huff* concluded the trial court did not abuse its discretion in denying the plaintiff's request, noting plaintiff gave no explanation for the delay in seeking to amend. The court further recognized that based on the undisputed facts presented, no liability would lie under the new claim." (*Melican, supra*, 151 Cal.App.4th 168, 175-76.) And as to its own case, the *Melican* court stated that: "plaintiffs were aware of the facts underlying the purported contract between Joseph and UCI from the time the agreement allegedly was formed. Consequently, this claim should have been pleaded when Joseph was added as a party to the action in January 2000. Yet, plaintiffs never

sought to add the claim until they made their oral request during the summary judgment hearing over five years later. Plaintiffs proffer no explanation for this clearly unreasonable delay. It would be patently unfair to allow plaintiffs to defeat UCI's summary judgment motion by allowing them to present a 'moving target' unbounded by the pleadings." (*Id.*, at p. 176.) Plaintiffs do not explain the reason for the delay in requesting leave to amend, nor do they articulate why another state law claim could not have been pleaded when the complaint was amended over a year ago. As such, it would be unfair to Defendant to grant leave to amend.

IV. CONCLUSION

1. Defendant GM's Motion for Summary Judgment is GRANTED.
2. The Court DENIES Plaintiffs' request for leave to amend.

Evidence considered in relation to the MSJ: Defendant's Mr. Roybal's Declaration along with Exhibit A (Retail Installment Sale Contract) attached thereto. Defendant's Mr. Jensen's Declaration along with Exhibits B-D (GM's View Vehicle Delivery Information, copy of the 2021 GMC Limited Warranty and Owner Assistance Information booklet and View Vehicle Summary report for the Sierra) attached thereto. The undisputed material facts 1-8 in Defendant's Separate Statement, which are supported by the previously stated evidence. And Plaintiff's Declaration of Mr. Powell with attached Exhibits 1-2.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court